

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Giansante	Team: Squad #14	CCRB Case #: 201504398	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 05/29/2015 7:00 PM	Location of Incident: Guy Brewer Boulevard and Baisley Boulevard	18 Mo. SOL 11/29/2016	Precinct: 113		
Date/Time CV Reported Mon, 06/01/2015 12:54 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/01/2015 12:54 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Andrew Schlegel	13010	954324	PBQ/S
2. POM Winfred Carmona	27638	954605	PBQ/S

Officer(s)	Allegation	Investigator Recommendation
A . POM Andrew Schlegel	Abuse: PO Andrew Schlegel stopped the car in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Winfred Carmona	Abuse: PO Winfred Carmona stopped the car in which § 87(2)(b) was an occupant.	B . Exonerated
C . POM Andrew Schlegel	Abuse: PO Andrew Schlegel damaged § 87(2)(b) s property.	C . Substantiated

Case Summary

On May 29, 2015, at approximately 7 p.m., § 87(2)(b) was driving northbound on Guy Brewer Boulevard in Queens. § 87(2)(b)'s coworker, § 87(2)(b) was sitting in the front passenger seat. § 87(2)(b) came to a stop at a red light at the intersection with Baisley Boulevard. PO Andrew Schlegel and PO Winfred Carmona of Patrol Borough Queens South approached on foot to perform a vehicle stop (**Allegations A and B**). PO Schlegel and PO Carmona stood on the passenger side of § 87(2)(b)'s vehicle, which remained in the right lane of Guy Brewer Boulevard. § 87(2)(b) began to pull over to park at the curb. PO Schlegel drew his asp and struck the vehicle's rear windshield, causing it to shatter (**Allegation C**). The officers called a supervisor to the scene and released § 87(2)(b) and § 87(2)(b) without issuing any summonses.

Mediation, Civil and Criminal Histories

- The case was unsuitable for mediation because § 87(2)(b) did not consider the damage to vehicle minor and said it was the main focus of his complaint.
- § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the NYC Comptroller's office regarding the incident as of June 18, 2015 (BR01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (BR03; BR04).
- PO Andrew Schlegel has been a member of the NYPD for two years and has no previous CCRB allegations (see officer history).
- PO Winfred Carmona has been a member of the NYPD for two years. He has one prior CCRB allegation in a case that is still under investigation (see officer history).

Findings and Recommendations

- **Allegation A—Abuse of Authority: PO Andrew Schlegel stopped the car in which § 87(2)(b) was an occupant.**
Allegation B—Abuse of Authority: PO Winfred Carmona stopped the car in which § 87(2)(b) was an occupant.

It is undisputed that PO Schlegel and PO Carmona stopped § 87(2)(b)'s vehicle.

PO Schlegel noted in his memo book that he stopped § 87(2)(b)'s vehicle for tinted windows (BR05). During his CCRB interview, PO Schlegel recounted that he saw that the rear passenger window on § 87(2)(b)'s vehicle was heavily tinted, and that he concluded from his prior experience that the tint was illegal (BR06). He also recalled that the rear windshield was tinted. He did not have a tint meter during the incident and did not measure the tint. He ultimately used his discretion not to issue a summons for the tint. PO Carmona similarly noted in his memo book that the vehicle had "extremely dark window tints" (BR07). During his CCRB interview, PO Carmona recalled that the four cabin windows and the rear windshield were tinted, and that he could determine from visual observation that the tint was illegal (BR08).

§ 87(2)(b) admitted that his vehicle's windows and rear windshield are tinted, but said he did not know if the tints were legal because they were present when he bought the vehicle (BR09). He also said that the four cabin windows were down at the time of the stop. § 87(2)(b)

on the other hand, said that the vehicle's rear windows were up and the front windows were lowered halfway (BR10).

§ 87(2)(g)

Therefore it is recommended that **Allegations A and B** be closed as exonerated.

- **Allegation C—Abuse of Authority: PO Andrew Schlegel damaged** § 87(2)(b)

§ 87(2)(b) **s property.**

It is undisputed that PO Schlegel struck § 87(2)(b)'s vehicle's rear windshield with his asp.

§ 87(2)(b) recounted that PO Carmona approached the front passenger window and asked him for his license. PO Schlegel stood to PO Carmona's left, closer to the rear of the vehicle. § 87(2)(b) did not ask why he had been pulled over and did not hesitate in producing his license or refuse to provide it. PO Carmona did not have to ask § 87(2)(b) for his license again. At the time, § 87(2)(b)'s vehicle was in the right lane and was in a line of vehicles stopped at the red light. § 87(2)(b) began to retrieve the license from his wallet when PO Schlegel told him to pull over to the right in an empty space next to a fire hydrant. PO Schlegel did not specifically instruct § 87(2)(b) to provide his license before pulling over, and neither officer ever instructed § 87(2)(b) to shift into park or to turn off the ignition. § 87(2)(b) described the interaction as a typical traffic stop, and he remarked that he believed PO Schlegel and PO Carmona were rookie officers because officers usually obtain a license before instructing a driver to pull over. § 87(2)(b) turned the steering wheel to the right, but before he could put the vehicle in motion, he heard a loud noise from the rear and turned back to see that PO Schlegel had shattered the rear windshield. PO Schlegel appeared to be holding his head in his hands. PO Schlegel later apologized and said he thought § 87(2)(b) was attempting to drive away.

§ 87(2)(g)

§ 87(2)(b) recalled that PO Carmona was the officer who instructed § 87(2)(b) to pull over, and that § 87(2)(b) had been reaching into the center console to retrieve his license. § 87(2)(b) also recounted that the vehicle moved a few inches before PO Schlegel struck the rear windshield, and that afterward PO Schlegel said that he thought § 87(2)(b) was running away, repeatedly apologized, and said the situation was his fault.

§ 87(2)(b) provided photographs of the damage to his rear windshield (BR11-BR14). They show a visible point of impact on the passenger side of the windshield, and a linear hole in the glass that runs to the frame.

In his memo book entry regarding the incident, PO Schlegel wrote, "I, Officer Schlegel, believed the C/V was attempting to flee car stop and in fear of foot being run over or any other further injury reacted by striking rear windshield of the vehicle." In the narrative section of the City-Involved Accident Report he prepared, PO Schlegel wrote that he believed that § 87(2)(b) was "attempting to flee" and that he "reacted in fear of foot being run over or further injury by striking rear window of vehicle with nightstick" (BR15). During his CCRB interview,

PO Schlegel recounted that he stood at the rear passenger side of the vehicle while PO Carmona spoke to § 87(2)(b). PO Schlegel could not see § 87(2)(b) or § 87(2)(b) because of the window tints. He could not hear the entirety of PO Carmona's conversation with § 87(2)(b) and could not hear what § 87(2)(b) was saying. However, he could hear that § 87(2)(b)'s voice was not raised and that he did not sound angry. PO Carmona's body language did not indicate to PO Schlegel that he was arguing with the vehicle's occupants. However, PO Schlegel's experience in conducting vehicle stops has shown him that motorists will occasionally appear compliant but will still drive away. PO Schlegel heard PO Carmona speak with § 87(2)(b) for approximately 15 seconds before requesting his license and instructing him to put the vehicle in park. He could not recall if PO Carmona issued any additional instructions to § 87(2)(b). He did not recall hearing PO Carmona instruct § 87(2)(b) to pull over to the curb and did not see PO Carmona gesture toward the curb or otherwise indicate that § 87(2)(b) should pull over. § 87(2)(b)'s vehicle suddenly moved forward and to the right. PO Schlegel and PO Carmona both moved backward. If PO Schlegel had not moved backward, the vehicle's rear passenger tire would have run over his foot. He could not recall if he took more than one step backward. As he moved backward, his right hand swung backward and grabbed his asp from his belt. His arm continued swinging and came around over his head. PO Schlegel is "right foot dominant," but when he moved backward he landed on his left foot, which lacked strength. As a result, he reached out with his right arm for balance. The force of PO Schlegel's right arm swinging down caused his asp to extend and strike the rear windshield. PO Schlegel's jump backwards from the vehicle and his strike of the windshield occurred as one continuous, instantaneous motion. PO Schlegel insisted that he did not intend to strike the windshield. He only struck the vehicle in the process of attempting to evade it. § 87(2)(b)'s vehicle never touched PO Schlegel.

PO Carmona § 87(2)(g) recalled that § 87(2)(b) was instructed to put his vehicle in park and produce his license. He did not recall which instruction was given first and thought they may have been said in the same sentence. He first said that PO Schlegel issued the instruction, but he later said he could not recall if he did so, if PO Schlegel did so, or if they both did so. PO Carmona watched § 87(2)(b) reach down in the direction of the gear shift. PO Carmona believed that PO Schlegel was also able to see § 87(2)(b) at the time. It became clear to PO Carmona that § 87(2)(b) was doing something other than putting the vehicle into park. This prompted PO Schlegel, and possibly PO Carmona, to repeat the instruction that § 87(2)(b) should shift into park. PO Carmona claimed that PO Schlegel issued this instruction to § 87(2)(b) at least twice during the encounter and that PO Schlegel yelled when he did so. PO Carmona denied that either he or PO Schlegel ever instructed § 87(2)(b) to pull over to the curb or gave any nonverbal indication that he should do so. § 87(2)(b) revved the engine and the vehicle jumped forward and to the right. PO Carmona jumped backwards and saw in his peripheral vision that PO Schlegel jumped backwards, drew his asp, extended it, and struck the rear windshield. The vehicle moved forward approximately two feet. PO Schlegel later told PO Carmona that he struck the windshield because he feared that the vehicle was going to strike them. PO Schlegel did not say that he had struck the vehicle accidentally. § 87(2)(b) stopped and asked what was going on. The officers again instructed him to put his vehicle in park and he replied, "I was going to park." It was clear to PO Carmona that § 87(2)(b) had misunderstood the officers' instruction. They clarified that they had wanted him to shift into park and he seemed to understand and complied.

§ 87(2)(g)

Officers must give due respect to property but may damage property if doing so is reasonably necessary to carry out their duties. Onderdonk v. New York, 170 Misc.2d 155 (1996, Court of Claims) (BR16).

§ 87(2)(g)

Therefore it is recommended that **Allegation C** be closed as **substantiated**.

Squad: 14

Investigator:	_____	<u>Daniel Giansante</u>	_____
	Signature	Print	Date

Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date